

DORA

DelDOT Orchestrated Review Assistant — Findings Report

Generated: August 19, 2026 at 17:49 UTC

Metric	Value
Packages Analyzed	6
Total Requirements Checked	108
Findings (FLAG)	28
Compliant (NO_FLAG)	80
Critical Flags	3
High Flags	13
Medium Flags	12

Scoring Authority: Reference_Checklist.csv — Challenge_Reference_Rule
Sources (.txt files) are used for confidence scoring only, not as validation criteria.

This is not an official DelDOT application. Findings are decision support only — not a legal conclusion. Human review is required.

Contract: DEV HARBOR CROSSING

18 requirements checked — 4 flags, 14 compliant

Flagged Findings

CC-01 — FHWA-1273 physical incorporation

Severity: **Critical** | Confidence: 86% | Governing: Proposal_and_General_Notices.pdf
Location: Proposal_and_General_Notices.pdf, p1, line 12 (section "Federal requirements")

Contract says:

"FHWA-1273 is incorporated by reference. No FHWA-1273 attachment is included in this package."

Rule requires:

If federal-aid metadata makes FHWA-1273 applicable, the form must be physically included in the package; a reference-only statement is insufficient for challenge scoring.

The governing document (Proposal_and_General_Notices.pdf) explicitly states that FHWA-1273 is 'incorporated by reference' and that 'No FHWA-1273 attachment is included in this package.' This is a direct, affirmative conflict with the Challenge Reference Rule, which requires physical inclusion of the form for a covered federal-aid contract. No addendum revises this provision. The package's own l...

Action: Review and correct: the FHWA-1273 form must be physically incorporated into the contract package. The current reference-only approach does not satisfy the federal-aid requirement. Human reviewer sh...

CC-08 — Addenda and Q&A; currency

Severity: **High** | Confidence: 88% | Governing: Proposal_and_General_Notices.pdf
Location: Proposal_and_General_Notices.pdf, p1, lines 25-27 (section "Addenda and Q&A; currency")

Contract says:

"Addenda Acknowledgment. Only the Addenda expressly listed in the original proposal need be acknowledged; later issued Addenda may be disregarded."

Rule requires:

Use the latest provided Addendum/package version. A draft that ignores a later issued Addendum is a finding.

The Challenge Reference Rule requires the package to acknowledge the current (latest) addenda and prohibits treating the original proposal as self-updating. The governing document, Proposal_and_General_Notices.pdf, affirmatively states that 'later issued Addenda may be disregarded.' This directly contradicts the rule: the package explicitly permits ignoring later-issued addenda rather than requ...

Action: Review and correct the Addenda Acknowledgment clause in Proposal_and_General_Notices.pdf. The current text expressly permits disregarding later-issued addenda, which conflicts with the requirement ...

CC-09 — Buy America / BABA applicability

Severity: **Critical** | Confidence: 91% | Governing: Proposal_and_General_Notices.pdf
Location: Proposal_and_General_Notices.pdf, p1, lines 7,28,29 (section "Buy America/BABA applicable Yes")

Contract says:

"Buy America / BABA. Domestic-content requirements do not apply to this project."

Rule requires:

Apply Buy America/BABA only when project metadata/reference indicates it applies; if applicable, a clause saying it does not apply is a finding.

The project metadata at line Proposal_and_General_Notices.pdf|p1|L7 confirms 'Buy America/BABA applicable Yes.' However, the Buy America / BABA applicability clause at lines L28–L29 of the same document affirmatively states 'Domestic-content requirements do not apply to this project.' This directly contradicts the metadata and the Challenge Reference Rule. No addendum revises this provision — A...

Action: Human review required: the Buy America/BABA clause in Proposal_and_General_Notices.pdf must be corrected to affirm that domestic-content requirements apply to this project, consistent with the proj...

CC-16 — Extensions of contract time

Severity: **Medium** | Confidence: 89% | Governing: General_Conditions.pdf
Location: General_Conditions.pdf, p1, lines 23-25 (section "Extensions of contract time")

Contract says:

"Time Extensions. Any delay automatically extends contract time for the length of the delay without further demonstration or timely supporting notice."

Rule requires:

When a delay scenario applies, an extension requires an excusable delay, a timely written request/notice under the reference process, and an effect on the critical path/substantial-completion time. Delay does not create an automatic time extension.

The governing document (General_Conditions.pdf) states that 'any delay automatically extends contract time for the length of the delay without further demonstration or timely supporting notice.' This directly and materially conflicts with all three elements of the Challenge Reference Rule: (1) it eliminates the requirement for an excusable delay by applying to 'any delay'; (2) it expressly waiv...

Action: Human review required. The time-extension clause in General_Conditions.pdf must be revised to reinstate the three mandatory elements under DelDOT 108.7: (1) the delay must be excusable, (2) the con...

Compliant Requirements

Req	Name	Status	Governing Document
CC-02	Proposal guaranty / bid bond	APPLIES	Proposal_and_General_Notices.p
CC-03	Non-collusive bidding certification	APPLIES	Proposal_and_General_Notices.p
CC-04	Performance and payment bonds	APPLIES	Addendum_B.pdf
CC-05	Contract execution and proof of insuranc	APPLIES	General_Conditions.pdf
CC-06	Contractor Registration Act notice	APPLIES	Proposal_and_General_Notices.p
CC-07	Delaware business / subcontractor licens	APPLIES	Proposal_and_General_Notices.p
CC-10	Coordination / order of precedence	APPLIES	General_Conditions.pdf
CC-11	Contract changes must follow written pro	APPLIES	General_Conditions.pdf
CC-12	Notification of contract changes	APPLIES	Addendum_C.pdf
CC-13	Right to audit and record retention	APPLIES	Proposal_and_General_Notices.p
CC-14	Contract subletting	APPLIES	General_Conditions.pdf
CC-15	Claims procedure	DOES_NOT_APPLY	Proposal_and_General_Notices.p
CC-17	Liquidated damages schedule / rate logic	APPLIES	Special_Provisions.pdf
CC-18	Compensation for changes	DOES_NOT_APPLY	General_Conditions.pdf

Contract: DEV MAPLE RIDGE

18 requirements checked — 2 flags, 16 compliant

Flagged Findings

CC-08 — Addenda and Q&A; currency

Severity: **High** | Confidence: 88% | Governing: Proposal_and_General_Notices.pdf
Location: Proposal_and_General_Notices.pdf, p1, lines 23-25 (section "Addenda and Q&A; currency")

Contract says:

"Addenda Acknowledgment. Only the Addenda expressly listed in the original proposal need be acknowledged; later issued Addenda may be disregarded."

Rule requires:

Use the latest provided Addendum/package version. A draft that ignores a later issued Addendum is a finding.

The governing document (Proposal_and_General_Notices.pdf) contains an Addenda Acknowledgment clause that affirmatively states 'later issued Addenda may be disregarded.' Project metadata confirms Addendum 1 has been issued. No Addendum revises this specific provision. This clause directly contradicts the Challenge Reference Rule, which requires acknowledgment of the latest addenda and prohibits ...

Action: Human review required. The Addenda Acknowledgment clause in Proposal_and_General_Notices.pdf expressly permits bidders to disregard later-issued addenda, directly conflicting with CC-08. This claus...

CC-13 — Right to audit and record retention

Severity: **Medium** | Confidence: 94% | Governing: Proposal_and_General_Notices.pdf
Location: Proposal_and_General_Notices.pdf, p1, lines 26-28 (section "Right to audit and record retention")

Contract says:

"Right to Audit. Only prime-contractor records are subject to audit and records need be retained for one (1) year after final payment."

Rule requires:

For challenge scoring, relevant prime-contractor and subcontractor records supporting contract performance must be available for audit and retained for three years after final payment.

The package text deviates from the reference in two material respects. First, it limits audit scope to 'Only prime-contractor records,' expressly excluding subcontractor records, whereas the reference requires both prime-contractor and subcontractor records to be available for audit. Second, it shortens the retention period to 'one (1) year after final payment,' whereas the reference mandates t...

Action: Review and correct the Right to Audit clause in Proposal_and_General_Notices.pdf to extend the retention period from one year to three years after final payment and to include subcontractor records...

Compliant Requirements

Req	Name	Status	Governing Document
CC-01	FHWA-1273 physical incorporation	DOES_NOT_APPLY	Proposal_and_General_Notices.p
CC-02	Proposal guaranty / bid bond	APPLIES	Proposal_and_General_Notices.p
CC-03	Non-collusive bidding certification	APPLIES	Proposal_and_General_Notices.p
CC-04	Performance and payment bonds	APPLIES	Addendum_A.pdf

CC-05	Contract execution and proof of insuranc	APPLIES	General_Conditions.pdf
CC-06	Contractor Registration Act notice	APPLIES	Proposal_and_General_Notices.p
CC-07	Delaware business / subcontractor licens	APPLIES	Addendum_A.pdf
CC-09	Buy America / BABA applicability	DOES_NOT_APPLY	Proposal_and_General_Notices.p
CC-10	Coordination / order of precedence	APPLIES	General_Conditions.pdf
CC-11	Contract changes must follow written pro	APPLIES	General_Conditions.pdf
CC-12	Notification of contract changes	APPLIES	General_Conditions.pdf
CC-14	Contract subletting	DOES_NOT_APPLY	General_Conditions.pdf
CC-15	Claims procedure	DOES_NOT_APPLY	Proposal_and_General_Notices.p
CC-16	Extensions of contract time	DOES_NOT_APPLY	General_Conditions.pdf
CC-17	Liquidated damages schedule / rate logic	APPLIES	Special_Provisions.pdf
CC-18	Compensation for changes	DOES_NOT_APPLY	General_Conditions.pdf

Contract: DEV NORTHFIELD

18 requirements checked — **5 flags**, 13 compliant

Flagged Findings

CC-02 — Proposal guaranty / bid bond

Severity: **High** | Confidence: 94% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 13-14 (section "Proposal guaranty / bid bond")

Contract says:

"Proposal Guaranty. Bid security equal to five percent (5%) of the total bid price is sufficient."

Rule requires:

Where applicable, proposal guaranty must equal 10% of total bid price.

The governing document (Proposal_and_General_Notices.pdf) expressly states the bid security equals five percent (5%) of the total bid price. The Challenge Reference Rule requires ten percent (10%). This is a direct, affirmative numerical conflict — the package halves the required guaranty percentage. No addendum revises this provision. The deviation is material and provable by direct quotation.

Action: Human review required: the proposal guaranty clause specifies 5% of total bid price, which conflicts with the 10% requirement under DelDOT 102.8. The clause must be corrected to require 10% before ...

CC-09 — Buy America / BABA applicability

Severity: **Critical** | Confidence: 91% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 7,24,25 (section "Buy America/BABA applicable Yes")

Contract says:

"Buy America / BABA. Domestic-content requirements do not apply to this project."

Rule requires:

Apply Buy America/BABA only when project metadata/reference indicates it applies; if applicable, a clause saying it does not apply is a finding.

The project metadata and the proposal's own summary line at [Proposal_and_General_Notices.pdf|p1|L7] both confirm 'Buy America/BABA applicable Yes.' However, the operative clause under the heading 'Buy America / BABA applicability' at [Proposal_and_General_Notices.pdf|p1|L25] affirmatively states 'Domestic-content requirements do not apply to this project.' This directly contradicts the confirm...

Action: Human review required: the Buy America/BABA clause in Proposal_and_General_Notices.pdf must be corrected to affirmatively state that domestic-content requirements apply and include the required cer...

CC-12 — Notification of contract changes

Severity: **High** | Confidence: 88% | Governing: General_Conditions.pdf

Location: General_Conditions.pdf, p1, lines 17-19 (section "Notification of contract changes")

Contract says:

"Change Notification. Written follow-up documentation may be submitted within thirty (30) calendar days after the alleged change."

Rule requires:

For challenge scoring, an alleged contract change requires immediate oral and written notice, affected work proceeds only after written direction, and the required written follow-up information is due within 7 calendar days of the initial notice unless a later governing document validly revises t...

The Challenge Reference Rule requires written follow-up information within 7 calendar days of the initial notice. The General Conditions clause under 'Notification of contract changes' affirmatively states that written follow-up documentation 'may be submitted within thirty (30) calendar days after the alleged change.' This is a direct, provable conflict: 30 calendar days versus the required 7 ...

Action: Review and correct the change notification deadline in General_Conditions.pdf. The 30-calendar-day written follow-up period must be revised to 7 calendar days to conform to the Challenge Reference ...

CC-16 — Extensions of contract time

Severity: **Medium** | Confidence: 89% | Governing: General_Conditions.pdf
Location: General_Conditions.pdf, p1, lines 20-22 (section "Extensions of contract time")

Contract says:

"Time Extensions. Any delay automatically extends contract time for the length of the delay without further demonstration or timely supporting notice."

Rule requires:

When a delay scenario applies, an extension requires an excusable delay, a timely written request/notice under the reference process, and an effect on the critical path/substantial-completion time. Delay does not create an automatic time extension.

The package clause at General_Conditions.pdf[p1|L21-L22 states that 'Any delay automatically extends contract time for the length of the delay without further demonstration or timely supporting notice.' This directly and affirmatively conflicts with all three elements of the reference requirement: (1) it eliminates the excusable-delay requirement by applying to 'any delay'; (2) it eliminates th...

Action: Human review required. The time-extension clause in General_Conditions.pdf materially conflicts with the reference requirement by making time extensions automatic for any delay without requiring ex...

CC-17 — Liquidated damages schedule / rate logic

Severity: **Medium** | Confidence: 86% | Governing: Special_Provisions.pdf
Location: Special_Provisions.pdf, p1, lines 6-7 (section "Liquidated damages schedule / rate logic")

Contract says:

"A fixed rate of \$10,000 per calendar day applies to every contract regardless of contract value or governing schedule."

Rule requires:

Use the governing Section 108.9 liquidated-damages schedule/rate logic for the applicable contract value and time basis after resolving Addenda and precedence. A universal invented flat daily rate is a material deviation.

The Special Provisions clause explicitly imposes a flat rate of \$10,000 per calendar day and expressly states it applies 'regardless of contract value or governing schedule.' This language directly contradicts the Challenge Reference Rule, which requires the rate to be tied to the applicable DelDOT 108.9 schedule based on contract value and time basis. The clause does not defer to the reference...

Action: Review and correct the liquidated damages clause in Special_Provisions.pdf to replace the universal flat daily rate with a rate derived from the DelDOT Section 108.9 schedule applicable to this con...

Compliant Requirements

Req	Name	Status	Governing Document
CC-01	FHWA-1273 physical incorporation	APPLIES	FHWA_1273_Contract_Provisions_
CC-03	Non-collusive bidding certification	APPLIES	Proposal_and_General_Notices.p

CC-04	Performance and payment bonds	APPLIES	General_Conditions.pdf
CC-05	Contract execution and proof of insuranc	APPLIES	General_Conditions.pdf
CC-06	Contractor Registration Act notice	APPLIES	Proposal_and_General_Notices.p
CC-07	Delaware business / subcontractor licens	APPLIES	Proposal_and_General_Notices.p
CC-08	Addenda and Q&A currency	DOES_NOT_APPLY	Proposal_and_General_Notices.p
CC-10	Coordination / order of precedence	APPLIES	General_Conditions.pdf
CC-11	Contract changes must follow written pro	APPLIES	General_Conditions.pdf
CC-13	Right to audit and record retention	APPLIES	Proposal_and_General_Notices.p
CC-14	Contract subletting	DOES_NOT_APPLY	General_Conditions.pdf
CC-15	Claims procedure	DOES_NOT_APPLY	Proposal_and_General_Notices.p
CC-18	Compensation for changes	DOES_NOT_APPLY	General_Conditions.pdf

Contract: DEV PINE GROVE

18 requirements checked — 7 flags, 11 compliant

Flagged Findings

CC-02 — Proposal guaranty / bid bond

Severity: **High** | Confidence: 94% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 11-12 (section "Proposal guaranty / bid bond")

Contract says:

"Proposal Guaranty. Bid security equal to five percent (5%) of the total bid price is sufficient."

Rule requires:

Where applicable, proposal guaranty must equal 10% of total bid price.

The governing document (Proposal_and_General_Notices.pdf) explicitly states the bid security need only equal 5% of the total bid price. This directly and materially conflicts with the Challenge Reference Rule, which mandates 10% of the total bid price. The figure is halved — a clear numerical deviation, not a paraphrase or deferral. No addendum revises this provision. The deviation is affirmati...

Action: Human review required: the proposal guaranty clause specifies 5% of total bid price, which is half the 10% required by DeIDOT Section 102.8. The clause must be corrected to require bid security equ...

CC-03 — Non-collusive bidding certification

Severity: **High** | Confidence: 93% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 13-14 (section "Non-collusive bidding certification")

Contract says:

"Non-Collusive Bidding Certification. Submission of the certification is encouraged but optional."

Rule requires:

Required non-collusive bidding certification must be present; harmless formatting/capitalization changes are not deviations.

The Challenge Reference Rule requires the non-collusive bidding certification to be present as a mandatory element of the DeIDOT proposal. The package text at Proposal_and_General_Notices.pdf|p1|L14 affirmatively states the certification is 'encouraged but optional,' which directly negates the mandatory nature of the requirement. This is a material deviation: the word 'optional' converts a requ...

Action: Human review required. The non-collusive bidding certification clause must be corrected to reflect that submission is mandatory, not optional, in accordance with DeIDOT 102.15. The current language...

CC-06 — Contractor Registration Act notice

Severity: **High** | Confidence: 93% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 15-17 (section "Contractor Registration Act notice")

Contract says:

"Contractor Registration. Covered work may begin before registration, provided registration is completed within thirty (30) days after field work starts."

Rule requires:

For covered Delaware construction/maintenance work, the draft must not allow required contractor registration to occur only after work begins.

The package text at lines Proposal_and_General_Notices.pdf|p1|L16–L17 explicitly permits covered work to begin before registration is obtained, requiring only that registration be completed within 30 days after field work starts. This directly and affirmatively conflicts with the Challenge Reference Rule, which prohibits any provision allowing registration to occur only after work begins. The p...

Action: Human review required: the Contractor Registration clause in Proposal_and_General_Notices.pdf must be revised to require registration before covered work begins, consistent with 19 Del. C. § 3604. ...

CC-07 — Delaware business / subcontractor licenses

Severity: **High** | Confidence: 92% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 18-20 (section "Delaware business / subcontractor licenses")

Contract says:

"Licenses. Bidder license evidence is not required with the proposal; subcontractor license copies may be provided sixty (60) days after engagement."

Rule requires:

For challenge scoring, a current prime contractor occupational/business license must accompany the proposal. Subcontractor/independent-contractor license copies must be provided within 30 days after entering the public works contract, or within 10 days after a subcontractor/independent contractor...

The package text deviates from the reference in two material respects. First, it states that 'Bidder license evidence is not required with the proposal,' directly negating the reference requirement that a current prime contractor business/occupational license must accompany the proposal. Second, it states that subcontractor license copies 'may be provided sixty (60) days after engagement,' whic...

Action: Human review required. The governing document (Proposal_and_General_Notices.pdf) affirmatively conflicts with 29 Del. C. § 6967 on two points: (1) it eliminates the mandatory prime-contractor licen...

CC-11 — Contract changes must follow written process

Severity: **High** | Confidence: 89% | Governing: General_Conditions.pdf

Location: General_Conditions.pdf, p1, lines 15-16 (section "Contract changes must follow written process")

Contract says:

"Oral direction from an authorized representative immediately modifies scope, price, or time even if never reduced to writing."

Rule requires:

Material contract changes must follow the documented written process; oral direction alone must not immediately alter scope/price/time.

The governing document (General_Conditions.pdf) contains an affirmative statement at lines L15–L16 that 'Oral direction from an authorized representative immediately modifies scope, price, or time even if never reduced to writing.' This directly and materially conflicts with the Challenge Reference Rule, which prohibits oral direction alone from immediately altering scope, price, or time. The p...

Action: Human review required. The contract changes clause in General_Conditions.pdf must be revised to remove the authorization of oral direction as an immediate modifier of scope, price, or time, and mus...

CC-13 — Right to audit and record retention

Severity: **Medium** | Confidence: 94% | Governing: Proposal_and_General_Notices.pdf

Location: Proposal_and_General_Notices.pdf, p1, lines 22-23 (section "Right to audit and record retention")

Contract says:

"Only prime-contractor records are subject to audit and records need be retained for one (1) year after final payment."

Rule requires:

For challenge scoring, relevant prime-contractor and subcontractor records supporting contract performance must be available for audit and retained for three years after final payment.

The package text deviates from the reference in two material respects: (1) it limits audit scope to 'only prime-contractor records,' expressly excluding subcontractor records, whereas the reference requires both prime-contractor and subcontractor records to be available for audit; and (2) it shortens the retention period from three years to one year after final payment. Both are affirmative con...

Action: Human review required: the Right to Audit clause must be corrected to (1) extend audit rights to subcontractor records in addition to prime-contractor records, and (2) restore the retention period ...

CC-17 — Liquidated damages schedule / rate logic

Severity: **Medium** | Confidence: 86% | Governing: Special_Provisions.pdf

Location: Special_Provisions.pdf, p1, lines 6-7 (section "Liquidated damages schedule / rate logic")

Contract says:

"A fixed rate of \$10,000 per calendar day applies to every contract regardless of contract value or governing schedule."

Rule requires:

Use the governing Section 108.9 liquidated-damages schedule/rate logic for the applicable contract value and time basis after resolving Addenda and precedence. A universal invented flat daily rate is a material deviation.

The Special Provisions clause explicitly imposes a flat daily rate of \$10,000 'regardless of contract value or governing schedule.' This language directly contradicts the Challenge Reference Rule, which requires the rate to be tied to the applicable Section 108.9 schedule based on contract value and time basis. The clause does not defer to the reference schedule — it affirmatively displaces it ...

Action: Human review required: the liquidated-damages clause in Special_Provisions.pdf must be revised to tie the daily rate to the applicable DelDOT Section 108.9 schedule for this contract's value and ti...

Compliant Requirements

Req	Name	Status	Governing Document
CC-01	FHWA-1273 physical incorporation	DOES_NOT_APPLY	Proposal_and_General_Notices.p
CC-04	Performance and payment bonds	APPLIES	General_Conditions.pdf
CC-05	Contract execution and proof of insuranc	APPLIES	General_Conditions.pdf
CC-08	Addenda and Q&A currency	DOES_NOT_APPLY	Proposal_and_General_Notices.p
CC-09	Buy America / BABA applicability	DOES_NOT_APPLY	Proposal_and_General_Notices.p
CC-10	Coordination / order of precedence	APPLIES	General_Conditions.pdf
CC-12	Notification of contract changes	APPLIES	General_Conditions.pdf
CC-14	Contract subletting	APPLIES	General_Conditions.pdf
CC-15	Claims procedure	DOES_NOT_APPLY	Proposal_and_General_Notices.p
CC-16	Extensions of contract time	APPLIES	General_Conditions.pdf
CC-18	Compensation for changes	APPLIES	General_Conditions.pdf

Contract: DEV RIVERBEND

18 requirements checked — 4 flags, 14 compliant

Flagged Findings

CC-12 — Notification of contract changes

Severity: **High** | Confidence: 88% | Governing: General_Conditions.pdf

Location: Addendum_A.pdf, p1, lines 5-8 (section "Revision to Contract changes must follow written process"); General_Conditions.pdf, p1, lines 17-19 (section "Notification of contract changes")

Contract says:

"Change Notification. Written follow-up documentation may be submitted within thirty (30) calendar days after the alleged change."

Rule requires:

For challenge scoring, an alleged contract change requires immediate oral and written notice, affected work proceeds only after written direction, and the required written follow-up information is due within 7 calendar days of the initial notice unless a later governing document validly revises t...

The governing document (General_Conditions.pdf) sets the written follow-up deadline at 'thirty (30) calendar days after the alleged change' [General_Conditions.pdf|p1|L18–L19]. The Challenge Reference Rule requires that written follow-up information be submitted within 7 calendar days of the initial notice. Thirty calendar days directly and materially conflicts with the 7-calendar-day deadline ...

Action: Review and correct the written follow-up deadline in General_Conditions.pdf, section 'Notification of contract changes'. The current text specifies 30 calendar days, which materially conflicts with...

CC-15 — Claims procedure

Severity: **Medium** | Confidence: 84% | Governing: General_Conditions.pdf

Location: General_Conditions.pdf, p1, lines 23-25 (section "Claims procedure")

Contract says:

"Claims. A contractor may preserve a claim by giving general notice within sixty (60) days; detailed contemporaneous documentation is optional."

Rule requires:

When a claim scenario applies, the challenge benchmark requires the reference notice/documentation process and a written claim within 30 calendar days after completion of the work described in the notice of intent, together with applicable Section 104.3 notice compliance. Harmless paraphrases are...

The governing clause in General_Conditions.pdf deviates from the Challenge Reference Rule in two material respects. First, it extends the notice window to sixty (60) calendar days, whereas the reference requires a written claim within thirty (30) calendar days after completion of the work described in the notice of intent — a direct numerical conflict (60 days vs. 30 days). Second, it character...

Action: Human review required. The claims procedure clause in General_Conditions.pdf conflicts with the reference on two points: (1) the notice/claim deadline is stated as 60 calendar days rather than the ...

CC-16 — Extensions of contract time

Severity: **Medium** | Confidence: 89% | Governing: General_Conditions.pdf

Location: General_Conditions.pdf, p1, lines 27-28 (section "Extensions of contract time")

Contract says:

"Any delay automatically extends contract time for the length of the delay without further demonstration or timely supporting notice."

Rule requires:

When a delay scenario applies, an extension requires an excusable delay, a timely written request/notice under the reference process, and an effect on the critical path/substantial-completion time. Delay does not create an automatic time extension.

The governing clause in General_Conditions.pdf directly contradicts all three elements of the reference rule. First, it grants an extension for 'any delay' rather than limiting relief to excusable delays. Second, it eliminates the timely written notice/request requirement by stating the extension occurs 'without further demonstration or timely supporting notice.' Third, it makes no reference to...

Action: Human review required. The time-extension clause in General_Conditions.pdf must be revised to reinstate the three mandatory conditions: (1) the delay must be excusable, (2) the contractor must subm...

CC-18 — Compensation for changes

Severity: **Medium** | Confidence: 84% | Governing: General_Conditions.pdf

Location: General_Conditions.pdf, p1, lines 29-31 (section "Compensation for changes")

Contract says:

"Compensation for Changes. All changed work shall be compensated at direct cost plus a fixed twenty-five percent (25%) markup without the reference documentation/workflow."

Rule requires:

When changed work applies, the challenge benchmark pricing sequence is: applicable contract unit prices first, then negotiated prices, then force-account pricing if agreement is not reached, subject to the reference notice/documentation process. A fixed arbitrary markup that replaces this workflo...

The General_Conditions.pdf clause governing compensation for changes replaces the mandatory three-step pricing sequence (contract unit prices → negotiated prices → force-account) with a flat 'direct cost plus 25% markup' applied to all changed work, and explicitly states this is applied 'without the reference documentation/workflow.' This affirmatively conflicts with the Challenge Reference Rul...

Action: Human review required. The compensation-for-changes clause in General_Conditions.pdf materially deviates from the required pricing-method sequence by imposing a flat 25% markup and expressly waivin...

Compliant Requirements

Req	Name	Status	Governing Document
CC-01	FHWA-1273 physical incorporation	APPLIES	FHWA_1273_Contract_Provisions_
CC-02	Proposal guaranty / bid bond	APPLIES	Proposal_and_General_Notices.p
CC-03	Non-collusive bidding certification	APPLIES	Proposal_and_General_Notices.p
CC-04	Performance and payment bonds	APPLIES	General_Conditions.pdf
CC-05	Contract execution and proof of insuranc	APPLIES	General_Conditions.pdf
CC-06	Contractor Registration Act notice	APPLIES	Proposal_and_General_Notices.p
CC-07	Delaware business / subcontractor licens	APPLIES	Proposal_and_General_Notices.p
CC-08	Addenda and Q&A currency	APPLIES	Proposal_and_General_Notices.p
CC-09	Buy America / BABA applicability	APPLIES	Proposal_and_General_Notices.p
CC-10	Coordination / order of precedence	APPLIES	General_Conditions.pdf

CC-11	Contract changes must follow written pro	APPLIES	Addendum_A.pdf
CC-13	Right to audit and record retention	APPLIES	Proposal_and_General_Notices.p
CC-14	Contract subletting	APPLIES	General_Conditions.pdf
CC-17	Liquidated damages schedule / rate logic	APPLIES	Special_Provisions.pdf

Contract: DEV STONE CREEK

18 requirements checked — 6 flags, 12 compliant

Flagged Findings

CC-05 — Contract execution and proof of insurance

Severity: **High** | Confidence: 90% | Governing: General_Conditions.pdf

Location: General_Conditions.pdf, p1, lines 10-11 (section "Contract execution and proof of insurance")

Contract says:

"Execution documents may be returned within forty-five (45) calendar days. Proof of insurance need not be provided before execution."

Rule requires:

For challenge scoring, required execution documents must be returned within 20 calendar days after notice of award, and acceptable proof/certificate of insurance must be furnished before contract execution. A later governing Addendum may validly revise a named provision.

The governing document (General_Conditions.pdf) contains two material deviations from the reference rule. First, it extends the execution document return period from 20 calendar days to 45 calendar days — a direct numerical conflict. Second, it states 'Proof of insurance need not be provided before execution,' which affirmatively negates the reference requirement that proof/certificate of insur...

Action: Human review required. General_Conditions.pdf materially conflicts with the reference on two points: (1) the 45-day return period must be corrected to 20 calendar days, and (2) the clause negating ...

CC-11 — Contract changes must follow written process

Severity: **High** | Confidence: 89% | Governing: General_Conditions.pdf

Location: General_Conditions.pdf, p1, lines 14-16 (section "Contract changes must follow written process")

Contract says:

"Contract Changes. Oral direction from an authorized representative immediately modifies scope, price, or time even if never reduced to writing."

Rule requires:

Material contract changes must follow the documented written process; oral direction alone must not immediately alter scope/price/time.

The General Conditions clause at lines L15–L16 directly and affirmatively states that 'Oral direction from an authorized representative immediately modifies scope, price, or time even if never reduced to writing.' This is a verbatim conflict with the Challenge Reference Rule, which prohibits oral direction alone from immediately altering scope, price, or time. The clause does not merely omit th...

Action: Human review required: the 'Contract changes must follow written process' clause in General_Conditions.pdf must be revised to remove the authorization for oral direction to immediately modify scope...

CC-14 — Contract subletting

Severity: **High** | Confidence: 91% | Governing: General_Conditions.pdf

Location: General_Conditions.pdf, p1, lines 20-22 (section "Contract subletting")

Contract says:

"Subcontracting. Up to eighty percent (80%) of the work may be subcontracted without Department approval, and the prime is not responsible for subcontractor performance."

Rule requires:

When subcontracting applies, use DelDOT Section 108.1 as the challenge baseline: the prime performs no less than 50% of the total original contract price with its own organization, excluding designated specialty items as provided by the reference; subletting requires written consent and does not ...

The package clause at General_Conditions.pdf|p1|L21–L22 contains two material deviations from the Challenge Reference Rule. First, it permits up to 80% of the work to be subcontracted, which means the prime need only self-perform 20% — directly conflicting with the reference requirement that the prime perform no less than 50% of the total original contract price with its own organization. Secon...

Action: Human review required. The subletting clause in General_Conditions.pdf materially weakens two core requirements: (1) it reduces the prime's minimum self-performance obligation from 50% to 20%, and ...

CC-15 — Claims procedure

Severity: **Medium** | Confidence: 84% | Governing: General_Conditions.pdf

Location: General_Conditions.pdf, p1, lines 23-25 (section "Claims procedure")

Contract says:

"Claims. A contractor may preserve a claim by giving general notice within sixty (60) days; detailed contemporaneous documentation is optional."

Rule requires:

When a claim scenario applies, the challenge benchmark requires the reference notice/documentation process and a written claim within 30 calendar days after completion of the work described in the notice of intent, together with applicable Section 104.3 notice compliance. Harmless paraphrases are...

The governing clause in General_Conditions.pdf deviates from the Challenge Reference Rule in two material respects. First, it extends the notice window to 'sixty (60) days,' whereas the reference requires a written claim within 30 calendar days after completion of the work described in the notice of intent — a direct numerical conflict (60 days vs. 30 days). Second, it expressly makes 'detailed...

Action: Human review required. The claims-procedure clause in General_Conditions.pdf materially conflicts with the reference on two points: (1) the notice/claim deadline is stated as 60 days rather than th...

CC-17 — Liquidated damages schedule / rate logic

Severity: **Medium** | Confidence: 86% | Governing: Special_Provisions.pdf

Location: Special_Provisions.pdf, p1, lines 6-8 (section "Liquidated damages schedule / rate logic")

Contract says:

"Liquidated Damages. A fixed rate of \$10,000 per calendar day applies to every contract regardless of contract value or governing schedule."

Rule requires:

Use the governing Section 108.9 liquidated-damages schedule/rate logic for the applicable contract value and time basis after resolving Addenda and precedence. A universal invented flat daily rate is a material deviation.

The Special Provisions clause explicitly imposes a flat rate of \$10,000 per calendar day and expressly states it applies 'regardless of contract value or governing schedule.' This is precisely the pattern the Challenge Reference Rule identifies as a material deviation: a universal invented flat daily rate that is not tied to the applicable reference schedule based on contract value and time bas...

Action: Review and correct the liquidated damages clause in Special_Provisions.pdf. The flat \$10,000/day rate applied 'regardless of contract value or governing schedule' must be replaced with a rate deriv...

CC-18 — Compensation for changes

Severity: **Medium** | Confidence: 85% | Governing: General_Conditions.pdf

Location: General_Conditions.pdf, p1, lines 29-31 (section "Compensation for changes")

Contract says:

"Compensation for Changes. All changed work shall be compensated at direct cost plus a fixed twenty-five percent (25%) markup without the reference documentation/workflow."

Rule requires:

When changed work applies, the challenge benchmark pricing sequence is: applicable contract unit prices first, then negotiated prices, then force-account pricing if agreement is not reached, subject to the reference notice/documentation process. A fixed arbitrary markup that replaces this workflo...

The General Conditions clause at lines L30–L31 affirmatively replaces the three-step pricing sequence (contract unit prices → negotiated prices → force-account) with a flat 'direct cost plus a fixed twenty-five percent (25%) markup' and explicitly excludes the reference documentation/workflow ('without the reference documentation/workflow'). This is a textbook example of the deviation the Chall...

Action: Review and correct the Compensation for Changes clause in General_Conditions.pdf. The fixed 25% markup language and the explicit exclusion of the reference documentation/workflow must be replaced w...

Compliant Requirements

Req	Name	Status	Governing Document
CC-01	FHWA-1273 physical incorporation	APPLIES	FHWA_1273_Contract_Provisions_
CC-02	Proposal guaranty / bid bond	APPLIES	Proposal_and_General_Notices.p
CC-03	Non-collusive bidding certification	APPLIES	Proposal_and_General_Notices.p
CC-04	Performance and payment bonds	APPLIES	Addendum_A.pdf
CC-06	Contractor Registration Act notice	APPLIES	Proposal_and_General_Notices.p
CC-07	Delaware business / subcontractor licens	APPLIES	Proposal_and_General_Notices.p
CC-08	Addenda and Q&A currency	APPLIES	Proposal_and_General_Notices.p
CC-09	Buy America / BABA applicability	APPLIES	Proposal_and_General_Notices.p
CC-10	Coordination / order of precedence	APPLIES	Addendum_A.pdf
CC-12	Notification of contract changes	APPLIES	General_Conditions.pdf
CC-13	Right to audit and record retention	APPLIES	Proposal_and_General_Notices.p
CC-16	Extensions of contract time	APPLIES	General_Conditions.pdf